

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS,
LLC,
Plaintiff,

vs.

Case No. 2015-CC-001309

KAREN JEAN MORRIS and ANY
UNKNOWN TENANT(s),
Defendants.

_____/

**MOTION FOR DEFAULT JUDGMENT
FOR
POSSESSION**

COMES NOW, the Plaintiff, COLONIAL, by and through the undersigned counsel, and moves this Court for an immediate default and writ of possession for failure of Defendant(s) to timely pay rent to Plaintiff and alleges:

1. Pursuant to the Stipulation of the parties, Defendant was to pay rent to counsel for the Plaintiff by the first of each month until further order of the Court. A copy of the Stipulation dated June 17, 2015 is incorporated into this Motion as Exhibit A.
2. Defendant failed to timely pay rent to counsel for the Plaintiff for the month of October 2015.
3. In support of this Motion, Plaintiff attaches true copies of the October 2015 rent payment and envelope containing same as Exhibits B and C.
4. Defendant's right to remain in the premises is conditional upon timely payment all

rent that is due. Florida Statute §723.063(2).

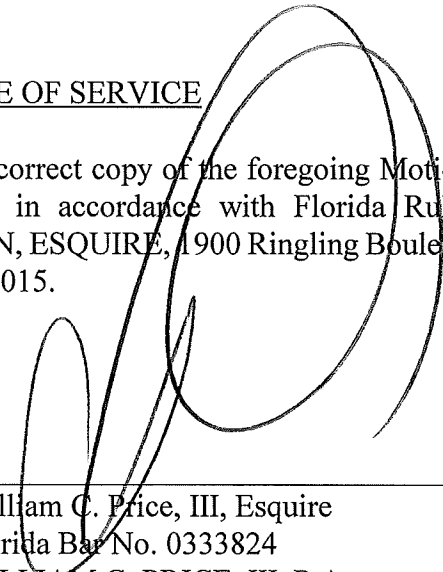
5. The Defendant has therefore waived any defenses to the Plaintiff's entitlement to possession of the premises pursuant to the complaint of the Plaintiff.

WHEREFORE, the Plaintiff moves this Honorable Court to enter an order granting the Plaintiff's possession of the premises identified as 900 - 9th Avenue East, Lot #123, Palmetto, Florida, 34221.

RESPECTIVELY SUBMITTED this 29th day of October, 2015.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Motion for Default Judgment for Possession has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to DEREK W. EISEMANN, ESQUIRE, 1900 Ringling Boulevard, Sarasota, Florida, this 29th day of October, 2015.



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